

Exh 1.) However, Defendant has failed to pay that agreed-upon amount, despite repeated attempts by Plaintiff to contact. (*Id.*, ¶¶6-7 & 10.)

12. *Peimbert v. Perez, et al*, Case No. CIVSB2412010
Defendant's Motion for Leave to File an Amended Answer
6/11/26, 9:00 a.m., Dept. S-17

This matter was set on shortened time, to allow further briefing, following an ex parte application brought on April 22, 2026

The Court is inclined to **DENY**. The Court will hear argument on whether further continuance is advisable.

Here, the initial matter was brought as an *ex parte* application for leave to file an amended answer on April 22, 2026. The supporting declaration did not include a proposed amended answer at that time. (See Lopez Decl., filed April 21, 2026.)

The matter was continued to allow the parties to continue to meet and confer and also for further briefing. Importantly, the opposition to the *ex parte* cited failure to comply with California Rules of Court, rule 3.1324. That Rule requires specification of the provisions that are proposed to be added, deleted, or amended. Further, a copy of the proposed amended answer was required. (Code Civ. Proc., § 473(b).) Despite these shortcomings, no further briefing has been submitted since the initial *ex parte* hearing on April 22, 2026.
